

12 CV 05180

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

^{34C*}
Lenny Goodman 895/200692
18 18 Haze Street East Elmhurst
New York 11370

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

Police Officer 1

Police Officer 2

NYC Police Department 113th
precinct

167 02 Baisley Blvd Queens NY 11412

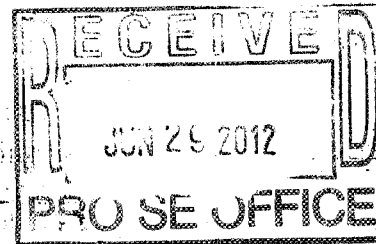
(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

COMPLAINT

under the

Civil Rights Act, 42 U.S.C. § 1983
 (Prisoner Complaint)

Jury Trial: ☒ Yes ☐ No
 (check one)



I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Police Officer 1 Police Officer 2
 ID # _____
 Current Institution 113th precinct
 Address 167 02 Baisley Blvd Queens NY 11412

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name Police Officer 1 Shield # Unknown
 Where Currently Employed _____
 Address 113th precinct
167 02 Baisley Blvd ~~Queens~~ Queens NY 11412

Defendant No. 2 Name Police Officer 2 Shield # Unknown
 Where Currently Employed _____
 Address 113th precinct
167 02 Baisley Blvd ~~Queens~~ Queens NY 11412

Defendant No. 3 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 4 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 5 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

- A. In what institution did the events giving rise to your claim(s) occur? took place
in NYC Streets
- B. Where in the institution did the events giving rise to your claim(s) occur? took place
in NYC Streets
- C. What date and approximate time did the events giving rise to your claim(s) occur? 7:10 am on May 20th, 2012 at Linden Blvd and 194th
street

D. Facts:

What happened to you?

I was handcuffed in the back seat of police car and was physically assaulted by two officers

Who did what?

Police Officer 1 113th precinct
Police Officer 2 113th precinct

Was anyone else involved?

No

Who else saw what happened?

Only other officers

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received.

No medical treatment was assisted and I sustained a broken tooth and several scratches and bruises

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ___ No ☒

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes _____ No ☒ Do Not Know _____

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes _____ No ☒ Do Not Know _____

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes _____ No ☒

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes _____ No ☒

If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve? NA

2. What was the result, if any? NA

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process.

NA

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

NA

2. If you did not file a grievance but informed any officials of your claim, state who you

informed, when and how, and their response, if any: _____

NA

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. _____

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. **Relief:**

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). _____

I am suing in the Amount

of \$1,000,000

*for pain and suffering, assault, defamation
of character and police brutality*

On
these
claims

VI. Previous lawsuits:

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes ☒ No ☐

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff Lenny Goodman

Defendants Police Officers 1 & 2 113th precinct

2. Court (if federal court, name the district; if state court, name the county) Southern District of New York

3. Docket or Index number Unknown

4. Name of Judge assigned to your case Reyes

5. Approximate date of filing lawsuit Unknown

6. Is the case still pending? Yes ☐ No ☒

If NO, give the approximate date of disposition Feb 2011

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) Settlement

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes ☐ No ☒

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ☐ No ☐

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?)

NA

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 20 day of June, 2012.

Signature of Plaintiff

Lenny Goodman

Inmate Number

8951200692

Institution Address

1818 Hazen Street

East Elmhurst

NY, 11370

Note: All plaintiffs named in the caption of this complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 20 day of June, 2012 I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

L. Goodman